

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JUNE 03, 2026
8:30 a.m.

1. LESLIE EDMONDS V. JEFFREY EDMONDS

23FL1077

This matter is before the court for hearing on the Request for Order (RFO) filed by the Petitioner on February 02, 2026, requesting the court to (1) set child custody and visitation, (2) order that the Petitioner be given exclusive temporary use, possession, and control of the parties' property located at 2949 Springwood Drive in South Lake Tahoe, California; (3) award attorney fees and costs; (4) order the Respondent to return monies to the parties' Commonwealth account; (5) order the parties to file tax returns; (6) order the parties to list their real property located at 1141 Keyt Way in Cotati, California, for immediate sale; and (7) reimburse Petitioner for post-separation expenses.

Petitioner concurrently filed with her RFO an Income and Expense Declaration (I&E), as well as supporting declarations from herself and her attorney. The filing of the RFO prompted the court to refer the parties to a CCRC session set for February 19, 2026. Proof of service filed February 03, 2026, shows the RFO and supporting documents were electronically served upon Respondent that same day.

On February 13, 2026, the court granted the Respondent's request to continue the CCRC session and rescheduled the appointment for March 05, 2026. The court denied the Respondent's request to continue the hearing date.

On March 02, 2026, Petitioner submitted a supplemental declaration in support of the RFO. Said declaration was electronically served upon Respondent that same day according to the proof of service, also filed March 02, 2026.

The court is in receipt of a CCRC report dated March 23, 2026, a copy of which was mailed to both parties on March 25, 2026, per the Clerk's Certificate of Mailing filed that day.

On March 25, 2026, Respondent filed a Responsive Declaration, a copy of which was electronically served upon Petitioner that same day according to the proof of service, also filed March 25, 2026.

On April 03, 2026, Petitioner filed another supplemental declaration. Proof of service filed that day shows the declaration was electronically served upon Respondent on April 03, 2026.

On April 14, 2026, the parties submitted a stipulation indicating they agree to adopt the agreements and recommendations contained in the CCRC report with agreed-upon modifications. The court entered the stipulation as the court's order that same day.

On April 22, 2026, Respondent filed his I&E, a copy of which was electronically served upon the Petitioner that same day.

On April 28, 2026, pursuant to the stipulation of the parties, the court continued the hearing on the RFO to June 03, 2026.

On May 18, 2026, Petitioner filed a supplemental declaration concerning Respondent's I&E, as well as a list of Petitioner's expert witnesses. Proof of service filed May 18, 2026, shows that both of these filings were electronically served upon the Respondent that same day.

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The parties' stipulation entered April 14, 2026, resolved the issues in the RFO regarding child custody and visitation.

The court notes that trial is currently set on the underlying petition for dissolution for July 16, 2026. The court also notes that the portion of Petitioner's request for attorney fees based on need does not allege that such attorney fees are necessary in order to proceed with trial. Therefore, in the interest of judicial economy, the court defers the remaining issues in the RFO to the time of trial.

TENTATIVE RULING #1: THE PORTION OF THE RFO REGARDING CHILD CUSTODY AND VISITATION IS DENIED AS MOOT. IN THE INTEREST OF JUDICIAL ECONOMY, THE COURT DEFERS THE REMAINING ISSUES IN THE RFO TO THE TIME OF TRIAL, WHICH IS CURRENTLY SET FOR JULY 16, 2026.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.